

Court No. - 21

Case :- WRIT - C No. - 13030 of 2024

Petitioner :- Mrs Rajendra Kumar Sharma

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Archana Devi, Kaushal Kishor, Vidya Kant Tripathi

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner has prayed for quashing of order of final assessment dated 24.06.2023.
2. The assessment order does not deal with the objections of the petitioner. It is also not clear therefrom that any date for hearing was fixed. The order also does not record any finding on basis of which it has been concluded that the petitioner was involved in committing theft. All the procedural requirements have been circumvented still the concerned Executive Engineer has tried to defend his action.
3. We require the Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd. to examine the instant case and file his affidavit as to how he supports the impugned order which apparently has been passed without following the procedure prescribed.
4. Put up as fresh on 10.05.2024.
5. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned order.
6. Sri Gaurav Singh, learned counsel appearing for the respondents-Electricity Department shall communicate the instant order to respondent no. 5 for due compliance.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.4.2024/Ruhi H.

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Counsel for Petitioner :- Archana Devi, Kaushal Kishor, Vidya Kant Tripathi

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Supplementary affidavit filed today is taken on record.
2. Shri Gaurav Singh, learned counsel appearing on behalf of respondent Electricity Department prays for and is granted ten days' further time to file affidavit of Managing Director, Dakshinanchal Vidyut Vitran Nigam in compliance of the previous order of this Court.
3. List as fresh on 23.05.2024.
4. Interim order, if any, is extended till the next date of listing.

Order Date :- 10.5.2024

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(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner assails the order dated 24.06.2023 passed by Executive Engineer, Vidyut Vitran Nigam, Chitrakoot and has prayed for a direction to restore its electricity supply. The order dated 24.06.2023 is an order of final assessment under Section 126 of the Electricity Act, 2003.

2. On 23.04.2024, following order was passed:-

"1. The petitioner has prayed for quashing of order of final assessment dated 24.06.2023.

2. The assessment order does not deal with the objections of the petitioner. It is also not clear therefrom that any date for hearing was fixed. The order also does not record any finding on basis of which it has been concluded that the petitioner was involved in committing theft. All the procedural requirements have been circumvented still the concerned Executive Engineer has tried to defend his action.

3. We require the Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd. to examine the instant case and file his affidavit as to how he supports the impugned order which apparently has been passed without following the procedure prescribed.

4. Put up as fresh on 10.05.2024.

5. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned order.

6. Sri Gaurav Singh, learned counsel appearing for the respondents-Electricity Department shall communicate the instant order to respondent no. 5 for due compliance."

2. In compliance of the above order, the Managing Director, Dakshinanchal Vidyut Vitran Nigam Limited has filed his affidavit. It is disclosed therein that by Office Memorandum dated 09.05.2024, he constituted a Two Member Inquiry Committee. It found that provisions of Clause 6.8 and 8.1 of U.P. Electricity Supply Code, 2005 had not been followed by the Executive Engineer while passing the order of final assessment. This is

despite repeated warning by this Court that the procedural compliances are not being made by the assessing officer while making assessment in cases of theft of electricity and on account of which, this Court is being burdened with unnecessary litigation which also results in loss of revenue to the State as, ultimately, such petitions are generally allowed. It is also stated in the affidavit that in pursuance of the report of Two Member Committee, a show cause notice dated 21.05.2024 has been issued to the concerned Executive Engineer to show cause as to why disciplinary proceedings be not initiated against him. It is also disclosed that a letter dated 04.05.2024 has been written to the District Magistrate, Chitrakoot to cancel the recovery citation dated 28.10.2023 issued in pursuance of the order of final assessment. It is stated that a fresh notice had been issued to the petitioner inviting objections and fixing a date for hearing. Sri Gaurav Singh, learned counsel for Electricity Department states that as hearing has already taken place, therefore, final order would be passed within ten days and dependent upon the outcome of the said proceedings, the Electricity Department would decide regarding restoration of electricity supply.

3. Having regard to the aforesaid stand of the Electricity Department, we are of the opinion that the cause does not survive. We hope and trust that the proceedings initiated by the Department against the officer responsible for not following the procedural requirement would be brought to its logical conclusion.

4. Counsel for the petitioner submits that the petitioner is ready to deposit such amount as may be directed by this Court by way of security in case the assessment proceedings go against him but his electricity supply be restored.

5. Counsel for the petitioner is agreeable to Rs.25,00,00/- (rupees twenty five lac) being deposited by the petitioner as a condition precedent for restoring the electricity supply.

6. Sri Gaurav Singh, learned counsel for the respondent-Electricity Department, has no objection to the same. He submits that the final assessment order would also be passed within ten days and deposit made by the petitioner may be made subject to the order of final assessment.

7. Accordingly, it is hereby provided that in case the petitioner deposits Rs.25,00,000/- (rupees twenty five lac) with respondent no.3, the electricity supply to its premises would be restored immediately. The deposit so made would be subject to final

outcome of the assessment proceedings.

8. The petition stands **disposed of** accordingly.

Order Date :- 23.5.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)